

25SMCV00969 25SMCV00969

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-10

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TENTATIVE RULING

Plaintiff Keith Klein's Motion for Payment of Attorney's Fees and Reimbursement of Costs and Expenses is GRANTED in the reduced amount of \$30,781.12.

Plaintiff Keith Klein to give notice.

Plaintiff Keith Klein ("Plaintiff") moves the Court for an order awarding Plaintiff attorney fees pursuant to his settlement agreement with Defendant General Motors LLC ("Defendant"). Defendant does not dispute that Plaintiff is entitled to recover attorney fees and costs; rather, Defendant opposes the motion on the ground that Plaintiff's requested attorney fees are too high.

Defendant argues that there is no basis to award \$40,234.57 to Plaintiff, which includes fees of \$33,934.50, a 0.1 lodestar multiplier, and costs of \$2,906.62. The Court has reviewed the motion and the billing sheets provided and finds that the requested fees are excessive and must be reduced. First, there is no basis to employ a multiplier here. While Plaintiff's counsel took on the case on a contingency basis, this alone does not warrant a multiplier, and the Court cannot conclude that there are other factors warranting a multiplier. Plaintiff's counsel is in the business of litigating Song-Beverly actions, meaning that many documents consist of work already done and merely edited to account for a different plaintiff, defendant, vehicle, and defect. There is no particular novelty in the work performed, as the Court itself sees that many Song-Beverly actions are substantially similar to each other, and there are no facts showing that this case was unique. Put simply, the skill employed by Plaintiff's counsel in litigating this action led to the settlement itself, and there is no basis to employ a multiplier in this action.

The Court also reduces the hours to omit a flat rate of \$3,900 for services rendered before preparing the complaint (\$3,900) and omit time spent preparing a motion to compel that was not heard (\$2,160). While Defendant takes issue with billing for clerical tasks, it does not sufficiently describe the billing entries with which it takes issue, such that the Court has no basis to reduce that time. Thus, the Court reduces the total amount of attorney fees requested by \$6,060, and the Court does not employ a multiplier. Defendant has not placed any of the costs at issue. Accordingly, Plaintiff Keith Klein's Motion for Payment of Attorney's Fees and Reimbursement of Costs and Expenses is GRANTED in the reduced amount of \$30,781.12.